ORDINANCE NO. 24-006Z
Town of North Providence
AN ORDINANCE AMENDING
CHAPTER 35 ZONING
The text below in underline is text to be added to the zoning code.
The text below in ~~strikethrough~~ is removed from the zoning code.

Article IV - Nonconformance

413. Substandard Lots of Record

~~No lot area shall be so reduced that yards, total area, and lot width shall be less than prescribed for the district in which the lot is located. No yard or open space provided around any building for the purpose of complying with the provisions of this ordinance shall again be used as a yard or open space for any other building.~~

~~A lot smaller than the minimum area and width required by this ordinance, which was a lot of record on the effective date of this amendment, which is separately owned may be used for a single family dwelling in any RS, RL, RG, CL or CG district provided that said lot shall have minimum width of 40 feet and a minimum area of 3,200 square feet, and further provided that connection is to be made to a public water and sanitary sewer.~~

~~In all zoning districts where adjacent lots which are smaller than the minimum area and width required by this ordinance, which were lots of record on the effective date of this amendment, are held under the same ownership, they shall be combined to form a lot which meets the minimum requirements of the zoning district where such lots are located.~~

~~Notwithstanding any provisions of this Ordinance to the contrary, a lot of record which was conforming at the time of passage of this Ordinance and which would be rendered non-conforming by the provisions of this Ordinance, need not be combined with contiguous land and shall continue to be considered conforming. The intensity regulations existing immediately prior to the passage of this ordinance shall govern such a lot.~~

~~In all R Zones where a single household dwelling may be erected on a substandard lot in accordance with the provisions of this section of the Ordinance, one of the side yards may be reduced from ten feet to six feet provided that the side of the dwelling unit facing the reduced yard area is of firerated construction, designed and constructed to the satisfaction of the Building~~

~~Official.~~

A. Notwithstanding the failure of a single substandard lot of record or contiguous lots of record to meet the dimensional and /or quantitative requirements of this zoning ordinance, and/or road frontage or other access requirements applicable to the district as stated in the ordinance, a substandard lot of record shall not be required to seek any zoning relief based solely on the failure to meet minimum lot size requirements of the district in which such lot is located. The setback, frontage, and/or lot width requirements for a structure under this section shall be reduced and the maximum building coverage requirements shall be increased by the same proportion as the lot area of the substandard lot is to the minimum lot area requirement of the zoning district in which the lot is located. All proposals exceeding such reduced requirement shall proceed with a modification request under Section 806 or a dimensional variance request under Article V, whichever is applicable.

B. Merger prohibited for certain lots. The merger of lots shall not be required when the substandard lot of record has an area equal to or greater than the area of fifty percent (50%) of the lots within two hundred feet (200 ft) of the subject lot, as confirmed by the zoning enforcement officer.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: June 4, 2024

Council President

Approved: June 6, 2024

Mayor

Marjana Douglas

Town Clerk